

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS----- X
RAFAEL CONCEPCION,

Plaintiff,

-against-

THE CITY OF NEW YORK & POLICE OFFICER
ELIZABETH McNULTY OF HOUSING PSA 9,

Defendants.

Index No.:

Purchased _____

Plaintiff designates Queens
County as the place of trialThe basis of venue is where the
tort arose.SUMMONS----- X
Plaintiff resides at
Queens County, New York**TO THE ABOVE NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Queens, New York
April 2, 2016

Schulman Law Group
Attorneys for Plaintiff
57-00 Broadway
Woodside, NY 11377
(718) 426-2800

Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, NY 10007**POLICE OFFICER ELIZABETH
McNULTY OF HOUSING PSA 9**
155-09 Jewel Ave
Flushing, NY 11367

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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Defendants.

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RAFAEL CONCEPCION, by his attorney, Schulman Law Group, respectfully alleges as follows:

AS FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff **RAFAEL CONCEPCION** was a resident of Queens County, City and State of New York.
2. At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the law of the State of New York.
3. On or about June 29, 2015, and within ninety (90) days after the claim herein arose and continued, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant **CITY OF NEW YORK**, by submitting a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant **CITY OF NEW YORK**, of the nature, place,

time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff has complied with the request of the municipal Defendants for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendant **POLICE OFFICER ELIZABETH McNULTY OF HOUSING PSA 9**, was and is a police officer of the Defendant **CITY OF NEW YORK**, and at all times herein was acting in such capacity as agent, servant and employee of the Defendant, **CITY OF NEW YORK**.
7. On or about April 4, 2015, at approximately 12:55 a.m., in the vicinity of 39-20 29th Street, Queens, NY, the Defendant **POLICE OFFICER ELIZABETH McNULTY OF HOUSING PSA 9**, in her capacity as police officer, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **RAFAEL CONCEPCION**

in an excessive manner about his person, causing him physical and mental suffering. At no time did the Defendant have legal cause to grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs “1” through “7” with full force and effect as though set forth at length herein.
9. On or about April 4, 2015, at approximately 12:55 a.m., in the vicinity of 39-20 29th Street, Queens, NY, the Defendant **POLICE OFFICER ELIZABETH McNULTY OF HOUSING PSA 9** did place Plaintiff **RAFAEL CONCEPCION** in imminent fear of physical contact by approaching the Plaintiff with firearms, outstretched limbs, which she used to physically seize and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did Plaintiff consent to the unlawful actions of the Defendant. Such conduct constituted an assault and battery against Plaintiff **RAFAEL CONCEPCION**.

AS FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs “1” through “9” with full force and effect as though set forth at length herein.

11. On or about April 4, 2015, at approximately 12:55 a.m., in the vicinity of 39-20 29th Street, Queens, NY, the Defendant **POLICE OFFICER ELIZABETH McNULTY OF HOUSING PSA 9**, without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody within a NYPD Police Precinct in the County of the Queens and initiated the charges against Plaintiff in Queens County criminal matter docket number 18385/2015. The Plaintiff was thereafter held in custody before being released and ordered to appear in court. The Defendant intentionally confined Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs “1” through “11” with full force and effect as though set forth at length herein.
13. Upon information and belief, on or about April 4, 2015, and from that time until the resolution of the charges, Defendant **POLICE OFFICER ELIZABETH McNULTY OF HOUSING PSA 9** deliberately and maliciously prosecuted Plaintiff **RAFAEL CONCEPCION**, without any probable cause, by filing or causing a criminal complaint to be filed in the Criminal Court of the City of New York, Queens County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

14. The Defendants, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce the prosecution of the Plaintiff.
15. The commencement of these criminal proceedings under Docket Number 18385/2015 was malicious and began in malice and without probable cause, so that the proceedings.
16. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made court appearances to defend his liberty against the unjust charges.

AS FOR A FIFTH CAUSE OF ACTION

17. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "16" with full force and effect as though set forth at length herein.
18. Defendant **POLICE OFFICER ELIZABETH McNULTY OF HOUSING PSA 9** was at all times relevant, duly appointed and an acting officer of the City of New York Police Department.
19. At all times mentioned herein, said police officer was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

20. Plaintiff **RAFAEL CONCEPCION** is and at all times relevant herein, a citizen of the United States and a resident of Queens County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
21. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
22. On or about April 4, 2015, Defendant **POLICE OFFICER ELIZABETH McNULTY OF HOUSING PSA 9**, an armed police officer, while effectuating the seizure of Plaintiff **RAFAEL CONCEPCION**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. The officer did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and maliciously prosecuted without the Defendant possessing probable cause to do so and the arrest was initiated without a reasonable suspicion of probable cause. Defendants subjected Plaintiff to a search and kept him in custody during the course of the arrest process, in violation of Plaintiff's civil rights.
23. The above actions of Defendant **POLICE OFFICER ELIZABETH McNULTY OF HOUSING PSA 9** resulted in the Plaintiff being deprived of the following rights under the United States Constitution:
- a. Freedom from assault to his person;
 - b. Freedom from battery to his person;
 - c. Freedom from illegal search and seizure;

- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from the use of excessive force during the arrest process.

24. Defendant **POLICE OFFICER ELIZABETH McNULTY OF HOUSING PSA 9** subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights used under the fourth and fourteenth amendments of the United States Constitution.

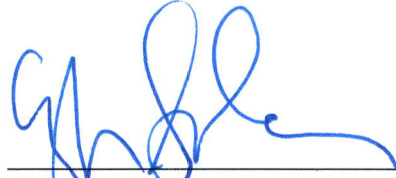
25. The direct and proximate result of the Defendant's acts are the Plaintiff has suffered severe and permanent injuries of a physical and psychological nature. He was forced to endure pain and suffering, all to his detriment.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with **ATTORNEY'S FEES** and costs for bringing this case and **PUNITIVE DAMAGES**.

Dated: New York, New York
April 3, 2016

Yours, etc.

SCHULMAN LAW GROUP



BY: Eylan Schulman
Attorneys for Plaintiff
57-00 Broadway
Woodside, NY 11377
(718) 426-2800

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VERIFICATION BY
AFFIDAVIT

----- X
STATE OF NEW YORK

ss:

COUNTY OF QUEENS

RAFAEL CONCEPCION, being duly sworn, says:

I am the Plaintiff in the action herein: I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts records and other pertinent information contained in my personal files.

I affirm that the foregoing statements are true, under the penalties of perjury.

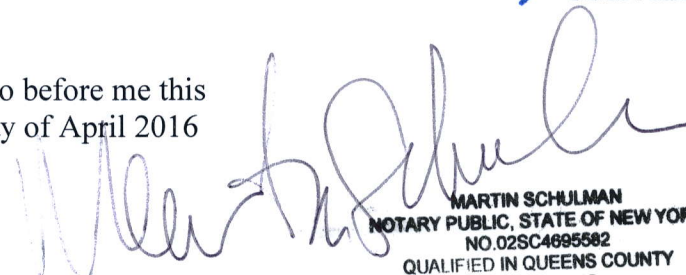
Dated: New York, New York
April 3, 2016



RAFAEL CONCEPCION

Sworn to before me this
3rd day of April 2016

Notary Public


MARTIN SCHULMAN
NOTARY PUBLIC, STATE OF NEW YORK
NO.02SC4695582
QUALIFIED IN QUEENS COUNTY
COMMISSION EXPIRES 8-1-18

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PSA 9,

Defendants.

SUMMONS, COMPLAINT & VERIFICATION

SCHULMAN LAW GROUP
57-00 Broadway
Woodside, New York 11377

By: Eylan Schulman
Tel.: 718-426-2800